

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CHRISTOPHER MOORE,

Plaintiff,

-against-

CITY OF NEW YORK, ERICK PARKS, MARCELO
LUC, ELENA GONZALEZ-MUNOZ, SALVATORE
TRISCRITTI, JOHN HERBERT, JOHN ORLANDO,
CONSTANTINE KANELOPOULOS and ERIC
HANSEN,

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
April 11, 2022

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405
Bayside, New York 11361
(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

TO: **CITY OF NEW YORK**

Via Corporation Counsel of The City of New York
100 Church Street
New York, New York 10007

Det. ERICK PARKS (Shield No. 3072) (Tax Reg. No. 914909)

Via Brooklyn North Homicide Squad
1 Police Plaza
New York, New York 10038

Det. SALVATORE TRISCRITTI (Shield No. 7881) (Tax Reg. No. 927607)

Via 73 Detective Squad
1470 East New York Avenue
Brooklyn, New York 11212

Sgt. JOHN HERBERT (Ret.) (Tax Reg. No. 899349)

Det. MARCELO LUC (Ret.) (Tax Reg. No. 914588)

Det. ELENA MUNOZ-GONZALEZ (Ret.) (Tax Reg. No. 906360)

Via NYPD Headquarters
1 Police Plaza
New York, New York 10038

Fire Marshal JOHN ORLANDO (Tax Reg. No. 911647)

Fire Marshal CONSTANTINE KANELOPOULOS (Tax Reg. No. 9157747)

Fire Marshal ERIC HANSEN (Tax Reg. No. 909182)

Via Citywide South
4 Metrotech Center
Brooklyn, New York 11201

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
CHRISTOPHER MOORE,

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.

CITY OF NEW YORK, ERICK PARKS, MARCELO LUC, ELENA GONZALEZ-MUNOZ, SALVATORE TRISCRITTI, JOHN HERBERT, JOHN ORLANDO, CONSTANTINE KANELOPOULOS and ERIC HANSEN,

Defendants.

-----X

Plaintiff, **Mr. CHRISTOPHER MOORE**, by and through the undersigned attorneys, Sim & DePaola, LLP, for his complaint against Defendants, **CITY OF NEW YORK, ERICK PARKS, MARCELO LUC, ELENA GONZALEZ-MUNOZ, SALVATORE TRISCRITTI, JOHN HERBERT, JOHN ORLANDO, CONSTANTINE KANELOPOULOS and ERIC HANSEN**, alleges and states as follows:

1. This is a civil rights action, in which Plaintiff seeks relief and redress against defendants vis-à-vis §§ 1981, 1983, 1985, 1986 and 1988, of Title 42 to the Code of Laws of the United States, for the violations of his civil rights under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States, the constitution of the State of New York and the laws of the City and State of New York.
2. The following claims arise from an October 8, 2012, incident, within the County of Kings and City and State of New York, in which defendants, unlawfully stopped, searched, seized, questioned, arrested and detained Plaintiff in the absence of probable cause.
3. Defendants caused a criminal prosecution to be initiated and thereafter maintained against Plaintiff in violation of his rights to Due Process and Fair Trial, until said criminal proceedings were

terminated in favor of Plaintiff on, or about, December 20, 2017, following his acquittal of all adverse charges by a jury of his peers.

4. As a result, Plaintiff was deprived his liberty and caused to suffer substantial physical and emotional injuries.

5. At all times here mentioned, defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

6. The above referenced acts caused Plaintiff to be deprived of his rights to be afforded a Fair Trial, Due Process and Equal Protection of the Law.

7. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, an award of costs and attorney's fees, with all interest then accrued, in addition to such other and further relief, as this Court may deem just and proper.

8. Plaintiff served notice of the claims herein on Defendant City of New York, at least thirty (30) days have elapsed since the service of such notice, and adjustment or payment thereof has been neglected or refused

PARTIES

9. Plaintiff, Mr. Christopher Moore ("Mr. Moore"), is a Black or African American male, who resides in Kings County, New York.

10. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD") and the Fire Department of the City of New York ("FDNY"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD and FDNY matters and was responsible for the appointment, training, supervision, discipline and

retention and conduct of all NYPD and FDNY personnel, including police officers, detectives, fire marshals, firefighters and supervisory officers, in addition to the individually named defendants herein.

12. At all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD and FDNY, and for ensuring that all NYPD and FDNY personnel obey the laws of the United States and of the City and State of New York.

13. Defendants, Erick Parks (“Parks”), Marcelo Luc (“Luc”), Salvatore Triscritti (“Triscritti”), Elena Gonzalez-Munoz (“Munoz”) and John Herbert (“Herbert”), were, at all times here relevant, police officers, detectives, sergeants, lieutenants or other supervisory officers employed by the NYPD and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at the times relevant herein, police officers, detectives, sergeants assigned to the 73rd Precinct of the NYPD, at 1470 East New York Avenue, Brooklyn, New York 11212. Defendants are being sued in their individual and official capacities.

14. Defendants, John Orlando (“Orlando”), Constantine Kanelopoulos (“Kanelopoulos”), Eric Hansen (“Hansen”), were, at all times here relevant, fire marshals, firefighters or supervisory officers employed by the FDNY and, as such, were acting in the capacities of agents, servants and employees of the City of New York. Defendants were, at the times relevant herein, fire marshals assigned to the Fire Investigation Bureau of the FDNY, at Citywide South, 5700 1st Avenue, Brooklyn, New York 11220. Defendants are being sued in their individual and official capacities.

15. At all relevant times herein, Defendants, including Parks, Luc, Munoz, Triscritti, Herbert, Orlando, Kanelopoulos and Hansen, were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

16. On October 7, 2012, at approximately 12:00 a.m., Mr. Moore left his residence at 295 East 98th Street, Brooklyn, New York.

17. Mr. Moore left his residence to enjoy a night out at Studio 10, a nightclub.
18. When Mr. Moore returned to his residence, at approximately 4:00 a.m. that same morning, he observed it to be on fire and defendants to be outside of the location.
19. Defendants, specifically defendant Orlando, asked Mr. Moore for a statement, because he was a resident of the building.
20. Mr. Moore informed defendant Orlando that he was not present when the fire began and that he did not know how the fire started.
21. Mr. Moore remained at the scene for a short time after giving his statement.
22. Mr. Moore then left the location and went to stay with his aunt, Lisa Moore.
23. On, or about, October 8, 2012, Mr. Moore visited his mother at Brookdale Hospital, who was an admitted patient being treated for advanced stage lung cancer.
24. While Mr. Moore was visiting with his mother, defendants arrived at the hospital and asked Mr. Moore to come to the 73rd Precinct to answer some questions regarding the fire.
25. Mr. Moore agreed and voluntarily accompanied them to the precinct.
26. Upon their arrival at the precinct, at approximately 8:30 p.m., on October 8, 2012, Mr. Moore informed defendants Parks, Orlando and Munoz that he was not present when the fire began and that he did not know how it started.
27. After giving defendants, including defendants Parks, Orlando and Munoz, his statement at the precinct, Mr. Moore requested to leave the precinct and return to his deathly ill mother.
28. Defendants, including defendants Parks, Orlando and Munoz, denied his request to leave the precinct and proceeded to illegally detain Mr. Moore against his will.
29. Mr. Moore then asked defendants, including defendants Parks, Orlando and Munoz, for an attorney, because he was not permitted to leave the precinct.

30. Defendants, including defendants Parks, Orlando and Munoz, ignored Mr. Moore's request for an attorney and proceeded to illegally detain and interrogate him against his will.

31. At approximately 12:53 a.m., on October 9, 2012, defendants Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, proceeded to further illegally question Mr. Moore about the fire.

32. Once again, Mr. Moore told them he was not present when the fire began and that he did not know how it started.

33. Mr. Moore was then told by defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, that he would not be free to leave the precinct and would never see his mother again, unless he said what defendants, including defendant Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, directed him to say.

34. Defendants, including defendants Parks, Orlando and Munoz, stated to Mr. Moore that if he said what they wanted him to say, he would be free to leave.

35. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, lied to Mr. Moore, falsely telling him that if he told defendants that he started the fire by accident, he would be free to leave and see his mother before she died, because accidental fires are not considered crimes and that they were only holding him because they could not close their case until someone told them how it started.

36. Defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, went so far as to tell Mr. Moore that if he was ever charged, defendants would testify in court to protect him and would ensure that he would never be convicted or go to prison.

37. Defendants Parks, Orlando and Munoz then left the interrogation room and returned at approximately 5:10 a.m. that same morning.

38. Defendants Parks, Orlando and Munoz then proceeded to further illegally question Mr. Moore about the incident, to which Mr. Moore, once again, denied any knowledge regarding the origins of the fire.

39. After approximately one (1) hour of interrogation, said defendants left the room.

40. Defendants Parks, Orlando and Munoz, also at approximately 5:10 a.m. to 6:10 a.m. that morning, and while inside of the interrogation room with Mr. Moore, proceeded to place a call on speaker to his deathly ill mother to further coerce Mr. Moore into falsely admitting to crimes that defendants knew never occurred or that Mr. Moore was innocent of.

41. Despite this extremely despicable, underhanded and coercive tactic, Mr. Moore told the truth about what he knew about the incident, which was the same truth he had already told defendants multiple times --- that he was not present when the fire began and had no idea how it started.

42. Defendants Parks, Orlando and Munoz then left Mr. Moore trapped in the interrogation room and, presumably, went home to sleep.

43. About six (6) hours later, at approximately 11:00 a.m., Defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, entered the interrogation room, where Mr. Moore was being illegally detained and questioned without his requested attorney.

44. At approximately 12:10 p.m., defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, obtained, through undue duress and coercion, false verbal and written statements from Mr. Moore, statements that defendants knew to be untrue and that that they knew to be procured via illegal means.

45. Later that day, at approximately 3:44 p.m., defendants, including Luc and Orlando, were present with Mr. Moore, he was further coerced, while under extreme duress, into giving a videotaped statement that defendants knew to be false and obtained in contravention of the laws of the United States and the State of New York.

46. Defendants, including Kanelopoulos and Hansen, at approximately 6:30 p.m., continued to illegally interrogate Mr. Moore by demanding that he admit to events that never occurred, all without his requested attorney present.

47. Defendants, including Kanelopoulos and Hansen, further illegally and deliberately misinformed Mr. Moore that if he conformed his admission statements to defendants' preferences, he would be free to leave and would not be held criminally liable.

48. Through their use of illegal methods, defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, coerced Mr. Moore into giving yet another false written statement that they knew to be untrue and to be the product of their extrajudicial, bordering on torturous, tactics.

49. The second written confession provided by Mr. Moore was procured by Defendants Kanelopoulos and Hansen through their use of coercion, impermissible lies or deception regarding potential criminal liability or ramifications, prolonged detainment, exhaustion tactics.

50. The written confessions that were allegedly voluntarily and knowingly provided by Mr. Moore are clearly the work of someone trained in the field of criminal arson investigations, as they are incredibly written to ever so narrowly traverse into the realm of criminality. So narrowly, in fact, that it would be impossible for an inexperienced individual, such as Mr. Moore, to detect or comprehend that he was actually admitting to Murder.

51. The words and sequence of events comprising Mr. Moore's multiple confessions were clearly provided by defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, as they are markedly different from Mr. Moore's speech pattern, style and vocabulary content.

52. Defendants Orlando and Kanelopoulos, at approximately 11:00 p.m. that same day, conducted yet another unlawful interrogation of Mr. Moore.

53. Defendants, Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, once again, obtained a false confession from a person they knew to be innocent and who only wanted to go see his mother before she passed.

54. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, coerced Mr. Moore into falsely admitting that he accidentally or recklessly started the fire and into writing and signing similarly false statements.

55. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, subjected Mr. Moore to sleep deprivation, lies, phone calls from his dying mother, manipulation from various detectives and fire marshals, who repeatedly lied, telling Mr. Moore that if he admitted to accidentally starting the fire, he would be free to leave and see his mother before she passes. All of which are legally impermissible and amount to serious and gross deviations from proper police conduct and procedure.

56. Instead of going free, Mr. Moore was taken to Kings County Central Booking, where he awaited arraignment on criminal charges for crimes that he did not commit.

57. Mr. Moore's mother, unfortunately, passed away the next week without ever seeing her son again, but with the knowledge that her son was a confessed murderer, who was probably going to prison for the remainder of his life.

58. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, intentionally provided Mr. Moore's false confession to the Kings County District Attorney's Office, knowing that it contained false statements and that it was procured via illegal means and methods, in gross violations of Mr. Moore's rights.

59. Defendant Herbert was the supervisor of defendants Parks, Munoz, Luc, and Triscitti, and knew, or should have known that defendants were acting in gross deviation from proper police procedure, in bad faith, and in direct violation of Mr. Moore's rights.

60. Defendant Parks was Mr. Moore's arresting officer and signed his criminal court complaint, knowingly and falsely accusing Mr. Moore of Murder in the Second Degree and other related charges.

61. Mr. Moore was arraigned and formally charged with two (2) counts of Murder in the Second Degree and one (1) count of Arson in the Fourth Degree.

62. Mr. Moore was unable to meet his bail conditions and was sent to Rikers Island, where he would remain until he was acquitted of all charges after a jury trial on December 20, 2017.

63. Defendants, including defendants Orlando and Kanelopoulos, testified before a grand jury convened to investigate the charges against Mr. Moore and offered false, fraudulent and misleading testimony to ensure that he was indicted, including Mr. Moore's illegally obtained false confession through the use of coercion and other impermissible tactics.

64. Defendants, including defendants Parks, Orlando, Munoz, Luc, Herbert, Triscitti, Kanelopoulos and Hansen, procured Mr. Moore's indictment via fraud, perjury, the suppression of evidence and other conduct undertaken in bad faith, including, but not limited to, the use of Mr. Moore's coerced and false confession.

65. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, failed to disclose, misrepresented and provided false material details, regarding the presence of probable cause and Mr. Moore's false confession, to the District Attorney's Office.

66. At no point did the Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, ever observe Mr. Moore commit any crime or offense.

67. At no point were the defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, ever told by any witnesses that Mr. Moore committed any crime or violation of the law.

68. The defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Moore.

69. Mr. Moore did not violate any law or local ordinance, nor did he knowingly or voluntarily confess to violating any law.

70. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, never possessed probable cause to believe a prosecution would succeed or that Plaintiff was guilty of any crime, as they were all fully aware that Mr. Moore was innocent and that his confession contained false admissions procured via illegal means.

71. While Plaintiff was in central booking, Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, acting with malice, conveyed false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Murder in the Second Degree and other related charges, namely that his confession was obtained legally, voluntarily and willfully.

72. Defendants, including defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert Kanelopoulos and Hansen, suppressed evidence and engaged in conduct undertaken in bad faith, namely the unlawful procurement of Mr. Moore's confessions in the absence of his requested attorney, the use of coercion tactics to obtain said confession, and the suppression of evidence showing that the fire could not have started the same way as detailed in Mr. Moore's false confession.

73. After his arraignment, Mr. Moore was incarcerated on Rikers Island.

74. During Mr. Moore's incarceration on Rikers Island he was forcibly subjected to over One Hundred (100) strip searches with cavity inspections.

75. Mr. Moore was also subjected to abuse, harassment and physical attacks by other inmates.

76. Mr. Moore's incarceration exacerbated his symptoms associated with his asthma condition, which required him to be prescribed with a more potent dose of albuterol.

77. Plaintiff was incarcerated for approximately seventy (70) months, until his acquittal of all charges after trial.

78. On, or about, December 20, 2017, Mr. Moore was acquitted of all criminal charges following a trial by jury, representing a favorable termination of the prosecution against him.

79. During all of the events described, the defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, acted maliciously and with intent to injure Plaintiff.

80. At all times relevant hereto, defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.

81. At all times relevant hereto, defendants, including Parks, Orlando, Munoz, Luc, Triscitti, Kanelopoulos and Hansen, engaged in gross deviations from proper NYPD or FDNY procedures, fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.

82. Defendants Kanelopoulos, Orlando and Hansen falsely identified the subject fire as criminally started to obtain additional overtime compensation.

83. Defendants Kanelopoulos, Orlando and Hansen falsely accused Mr. Moore and procured and false confession from him to justify their previously submitted false arson report stating that the subject fire was criminal in nature or criminally suspicious.

84. Upon information and belief, supervisors or policymakers of the NYPD, FDNY or City, were aware, or should have been aware that the individually named defendants, herein, were unfit for employment as law enforcement personnel due to prior violations of a similar nature, civilian

complaints, lawsuits, internal performance reviews, internal complaints, or their own personal observations of defendants, but failed to take any action to correct defendants' behavior.

85. Upon information and belief, Defendants Kanelopoulos, Orlando and Hansen have a long and documented history of illegally procuring false confessions to suspected arsons and of falsely labeling fires as being criminally suspicious, when defendants were fully aware that said fires were nonsuspicious, accidental or noncriminal in nature.

86. Upon information and belief, Defendant Kanelopoulos has falsely and fraudulently categorized hundreds of fires as criminally suspicious, when he was fully aware, or should have been fully aware that said fires were accidental or nonsuspicious in nature.

87. Upon information and belief, Defendant Kanelopoulos falsely classified these fires as criminally suspicious, so it would allow him to perform a criminal investigation, make arrests, conduct unlawful interrogations, garner arrest credits and procure confessions.

88. Upon information and belief, Defendant Kanelopoulos misclassified accidental nonsuspicious fires and conducted baseless criminal investigations to incur thousands of hours in overtime compensation pay, the favor of his superiors, and credit for solving crimes that never occurred.

89. Upon information and belief, Defendant Kanelopoulos' record as a fire marshal will be riddles with a plethora of poorly investigated and mislabeled fires, illegal criminal investigations, coerced confessions and unlawful arrests and prosecutions.

90. Defendant Kanelopoulos' unsavory and unconstitutional history, conduct and proclivities are so notorious that Defendants Orlando, Hansen and the City of New York knew, or should have known that he was unfit for employment in any kind of law enforcement position, or for any employment.

91. As a direct and proximate result of the acts of defendants Parks, Orlando, Munoz, Luc, Triscitti, Herbert, Kanelopoulos and Hansen, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

Unlawful Search & Seizure Under
42 U.S.C. § 1983 *Against* Individual Defendants

92. The above paragraphs are hereby incorporated by reference as though fully set forth.

93. Defendants subjected Plaintiff's person and his property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

94. Plaintiff were conscious and fully aware of the unreasonable searches and seizures to his person and property.

95. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

96. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

97. Accordingly, defendants violated Plaintiff's rights to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the Constitution of the United States.

98. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

Unlawful Search & Seizure Under
New York State Law

99. The above paragraphs are hereby incorporated by reference as though fully set forth.

100. Defendants subjected Plaintiff's person and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

101. Plaintiff was conscious and fully aware of the unreasonable searches and seizures to his persons and property.

102. Plaintiff did not consent to the unreasonable searches and seizures to his person or property.

103. The unreasonable searches and seizures to Plaintiff's person and property were not otherwise privileged.

104. Accordingly, defendants violated Plaintiff's right to be free from unreasonable searches and seizures, pursuant to § 12, Article I, of the constitution of the State of New York and § 8, Article II, of the New York Civil Rights Law.

105. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

106. As a direct and proximate result of this unlawful conduct, Plaintiff sustained damages.

THIRD CAUSE OF ACTION

Denial of Right to Due Process Under New York State Law

107. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

108. Defendants fabricated false evidence to be used against Plaintiff that was likely to influence a jury's decision.

109. Defendants forwarded said fabrications and false information to prosecutors.

110. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

111. Accordingly, defendants violated Plaintiff's right to Due Process, pursuant to §§ 1, 2 & 6, of Article I to the constitution of the State of New York, and § 12, Article II, of the New York Civil Rights Law.

112. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

113. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Denial of Rights to Fair Trial & Due Process Under
42 U.S.C. § 1983 *Against* Individual Defendants

114. The above paragraphs are hereby incorporated by reference as though fully set forth.

115. Defendants engaged in the fabrication of evidence likely to influence a jury's decision.

116. Defendants forwarded said fabrications and false information to prosecutors.

117. Defendants' actions resulted in deprivations to the liberty and freedom of movement of Plaintiff after legal process had attached following his arraignment in criminal court.

118. Accordingly, defendants violated Plaintiff's rights, pursuant to the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

119. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Violation of Victims of Violent Crime Protection Act Under
New York City Law

120. The above paragraphs are here incorporated by reference as though fully set forth herein.

121. Defendants' acts or series of acts constituted the commission of a misdemeanor or felony against Plaintiff, as defined in state or federal law, which presented a serious risk of physical injury to Plaintiff, regardless of whether said acts actually resulted in criminal charges, prosecutions or convictions.

122. Accordingly, defendants committed crimes of violence against Plaintiff and violated Plaintiff's rights, pursuant to § 10-403 of the Administrative Code of the City of New York.

123. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Biased Based Profiling Under
New York City Law

125. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

126. Defendants impermissibly relied upon the actual or perceived race, color, national origin, ancestry, citizenship status, gender, religion, religious practice, age, disability or sexual orientation of Plaintiff as the determinative factor in initiating law enforcement actions against Plaintiff, rather than Plaintiff's behavior or other information or circumstances that would link Plaintiff to suspected unlawful activity.

127. Accordingly, defendants violated Plaintiff's rights, pursuant to § 14-151 of the Administrative Code of the City of New York.

128. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
New York State Law

130. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

131. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

132. Defendants discriminated against Plaintiff on the basis of race, color, national origin, ancestry, gender, religion, religious practice, age, disability or sexual orientation.

133. Defendants also engaged in the selective treatment of Plaintiff, in comparison to others similarly situated.

134. Defendants' discriminatory treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or a malicious or bad faith intent to injure Plaintiff.

135. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

136. Defendants, motivated by racial animus, applied facially neutral statutes with adverse effects against Plaintiff.

137. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

138. Accordingly, defendants violated Plaintiff's rights, pursuant to Article I, § 11, of the constitution of the State of New York, Article VII, § 79-N, of the New York Civil Rights Law and § 296, ¶ 13, of the New York Executive Law.

139. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Deprivation of Rights & Denial of Equal Protection of the Laws Under
42 U.S.C. §§ 1981 & 1983 *Against* Individual Defendants

141. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

142. Plaintiff, as a Black or African American male, belongs to a racial minority and a protected class.

143. Defendants discriminated against Plaintiff on the basis of race, color, ethnicity or national origin.

144. Defendants engaged in the selective treatment of Plaintiff in comparison to others similarly situated.

145. Defendants' selective treatment of Plaintiff was based on impermissible considerations, such as race, color, ethnicity, an intent to inhibit or punish Plaintiff for the exertion of their Constitutional rights, or malicious or bad faith intent to injure Plaintiff.

146. Defendants applied facially neutral laws against Plaintiff in a discriminatory manner.

147. Defendants, motivated by racial animus, applied facially neutral penal statutes with adverse effects against Plaintiff.

148. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiff.

149. Accordingly, defendants violated Plaintiff's rights, under the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States.

150. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

151. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Conspiracy to Interfere with Civil Rights & Failure to Prevent the Conspiracy Under
42 U.S.C. §§ 1983, 1985 & 1986 *Against* Individual Defendants

152. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

153. Defendants engaged in a conspiracy against Plaintiff to deprive him of his rights to engage in protected speech or activities, to be free from unreasonable searches and seizures, to be afforded a fair trial, and to not be deprived of their liberty or property without Due Process of Law, in addition to Plaintiff's Constitutionally guaranteed privileges and immunities under the Fifth and Fourteenth Amendments to the Constitution of the United States.

154. Defendants committed overt acts in furtherance of their conspiracy against Plaintiff.

155. As a result, Plaintiff sustained injuries to his person, was deprived of his liberty, rights or privileges as a citizen of the United States.

156. Defendants' conspiracy was motivated by a desire to deprive Plaintiff of his civil rights or because of some racial or otherwise class-based, invidious or discriminatory animus.

157. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiff's civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or in the process of being committed, possessed the power to prevent or aid in the prevention of the conspiratorial objective, and neglected to do so.

158. Accordingly, defendants violated Plaintiff's rights, pursuant to the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

159. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

160. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 *Against* Individual Defendants

161. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

162. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

163. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

164. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under
New York State Law

165. The above paragraphs are hereby incorporated by reference as though fully set forth.

166. Defendant City owed a duty of care to Plaintiff to adequately hire, train, retain and supervise its employee defendants.

167. Defendant City breached those duties of care.

168. Defendant City placed the individually named defendants herein in a position where they could inflict foreseeable harm.

169. Defendant City knew or should have known of the individual named defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiff.

170. Defendant City failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiff.

171. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 *Against* Defendant City

172. The above paragraphs are hereby incorporated by reference as though fully set forth.

173. Defendant City maintained a policy or custom that caused Plaintiff to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of those who may interact with the individually named defendants to such Constitutionally repugnant behavior, such as Plaintiff.

174. Defendant City's employee police officers or fire marshals have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

175. Defendant City and its policymakers failed to provide adequate training or supervision to their subordinates to such an extent that is tantamount to their deliberate indifference toward the rights of those who may come into contact with the defendant City's employee police officers or fire marshals, including the individually named police officers herein.

176. Defendant City's employee police officers engaged in such egregious and flagrant violations of Plaintiff's Constitutional rights that the need for enhanced training or supervision is obvious and equates to the exhibition of deliberate indifference by defendant City and its officials, policymakers or supervisors toward the rights of individuals, who may come into contact with defendant City's employee police officers or fire marshals, including the individually named defendants herein.

177. Defendant City's repeated willful refusals or unexcused failures to install or apply corrective or preventive measures constitutes its tacit approval or deliberate indifference with respect to violations of the civil or Constitutional rights of those who may come into contact with NYPD/FDNY officers, including the individually named defendants herein.

178. Defendant City's conduct resulted in violations of Plaintiff's civil rights, under the Fourth, Fifth, Sixth and Fourteenth Amendments to the Constitution of the United States.

179. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- b) On the Second Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, a sum of money presently exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) Awarding Plaintiff compensatory and punitive damages in an amount to be determined by a jury on all causes of action set forth herein;

- n) Awarding Plaintiff reasonable attorney's fees and costs, pursuant to 42 U.S.C. § 1988, the New York Civil Rights and Executive Laws, and all applicable sections of the Administrative Code of the City of New York;
- o) Together with the costs and disbursements of this action, plus all interest.

JURY DEMAND

Plaintiff hereby demands a trial by jury.

Dated: Bayside, New York
April 11, 2022

SIM & DEPAOLA, LLP

Attorneys-at-Law

42-40 Bell Boulevard – Suite 405

Bayside, New York 11361

(718) 281-0400

By: /s/ Samuel C. DePaola
Samuel C. DePaola, Esq.
Attorney for Plaintiff

ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am a partner of SIM & DEPAOLA, LLP, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters stated to be alleged on information and belief and, as to those matters, I believe it to be true. This verification is made by me and not by the Plaintiff, because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
April 11, 2022

/s/ Samuel C. DePaola
SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

CHRISTOPHER MOORE,

Plaintiff,

-against-

CITY OF NEW YORK, ERICK PARKS, MARCELO LUC, ELENA GONZALEZ-MUNOZ,
SALVATORE TRISCRITTI, JOHN HERBERT, JOHN ORLANDO, CONSTANTINE
KANELOPOULOS and ERIC HANSEN,

Defendants.

SUMMONS & VERIFIED COMPLAINT

SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff
42-40 Bell Boulevard
Suite 405
Bayside, New York 11361
Tel. (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK

Attorneys for Defendants

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for